

Texas Department of Housing and Community Affairs
MANUFACTURED HOUSING DIVISION
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RETAIL MONITORING CHECKLIST

In accordance with Tex. Occ. Code Chapter 1201 (the "Standards Act") and Title 10 Texas Administrative Code, Subchapter C. of Chapter 80, for each manufactured home that is sold or transferred to one or more consumers by sale, exchange, or lease purchase, the retailer must maintain a file with this checklist on top and, as applicable, each of the following documents, executed and dated:

- ☐ All the loan documents were given at least 24 hours prior to execution of the loan documents. If the consumer(s) waived or modified the right to these advance copies, a copy of their written waiver.
- ☐ The [disclosure](#) required by Section 1201.162 of the Standards Act.
- ☐ [Dispute Resolution Disclosure](#) required by 24 CFR Sec. 3288.5 of the Manufactured Home Procedural and Enforcement Regulations (new home only).
- ☐ [Installation Program Disclosure](#) required by 24 CFR Sec. 3286.7 of the Manufactured Home Program (new home only).
- ☐ [Disclosure to Consumer of Possible Need to Vacate Home](#) if Financing does not close.
- ☐ The Texas Retail Installment Contract and Security Agreement or other applicable sale agreement (not required for real estate transactions where the home being sold has ALREADY been converted to real property) and, if applicable, any financing agreement if financing was provided or arranged by the retailer.
- ☐ If the retailer was responsible for any disclosures under the Federal Truth in Lending Act, Federal Reserve Regulation Z, the Real Estate Settlement Procedures Act, or HUD Regulation X, copies of such disclosures.
- ☐ [Broker Disclosure Statement](#).
- ☐ Cash Receipts to Support Down Payment.
- ☐ A complete list of all alterations with DAPIA Approval on file (if any).
- ☐ Notice of Air Conditioning Installation.
- ☐ The [Formaldehyde Notice](#) (Health Notice).
- ☐ For Used Homes Only -- [Warranty and Disclosure for a Used Manufactured Home](#).
- ☐ The [Notice of Installation \(Form T\)](#) (required on all new homes and, on used homes, if installation is provided).
- ☐ The Manufacturer's New Home Warranty was delivered to the Consumer (New Home Only).
- ☐ Documentation that any required Installation Warranty was delivered to the Consumer (New and Used Homes) and a copy of the warranty.

- ☐ The date that the Manufactured Home information card was mailed to the Manufacturer (New Home Only).
- ☐ For Used Homes Only - [Notice and Informed Consent to Installation on an Improperly Prepared Site](#).
- ☐ Copies of the Application for Statement of Ownership and Location.
- ☐ Insulation Disclosure (for new home only) per the Federal Trade Commission, 16 CFR Sec. 460.16.
- ☐ For Used Homes Only - [Site Preparation Notice](#).
- ☐ 3rd Party Instruction letter (if applicable).
- ☐ Information concerning inventory payoff (if applicable).
- ☐ [Right of Rescission Waiver](#) (if applicable).
- ☐ [List of Unlicensed Installers Form](#) (if applicable).